



Office of Public Affairs
U.S. Department of Justice



Missouri Man Pleads Guilty to Multimillion-Dollar Medicare Fraud Conspiracy

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For Immediate Release

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A Missouri man pleaded guilty today to orchestrating a scheme to defraud Medicare by unlawfully billing millions of dollars in claims for cancer genetic testing and cardiovascular genetic testing.

According to court documents, Jamie P. McNamara, 49, of Kansas City, operated several laboratories in Louisiana and Texas, which obtained doctors' orders for genetic testing from telemarketers and call centers that used aggressive telemarketing campaigns to induce Medicare beneficiaries to agree to receive genetic testing. Orders for genetic testing were signed by purported telemedicine doctors who were not the beneficiaries' treating physicians, did not perform consultations with the beneficiaries, and did not follow up with the beneficiaries after the testing was performed. To obtain the orders, McNamara paid illegal kickbacks and bribes, which he disguised through sham contracts. In furtherance of the scheme, he also shifted the billing between his laboratories to evade scrutiny from Medicare and law enforcement and concealed his ownership and control of the laboratories by falsely listing the names of his family members as owners and company representatives on Medicare and other documents. In approximately one and a half years, the laboratories operated by McNamara submitted over \$174 million in claims to Medicare for genetic testing and received over \$55 million in reimbursements. The government previously seized several luxury vehicles and over \$7 million in bank accounts.

"The defendant used illegal payments and lies to fraudulently bill Medicare over \$174 million," said Matthew R. Galeotti, Head of the Justice Department's Criminal Division. "Health care fraud harms patients, drains government resources, and violates the public trust. The Criminal Division is fully committed to uncovering and aggressively prosecuting these schemes."

"This guilty plea marks the conclusion of a meticulous and complicated prosecution," said Acting U.S. Attorney Michael M. Simpson for the Eastern District of Louisiana. "Medicare fraud schemes profoundly erode taxpayer confidence and faith in our medical institutions. Schemes such as these must be rooted out, investigated and prosecuted, not only for the monetary loss triggered by the fraud, but also to

preserve the public's trust. Our office, along with our investigative partners, will continue to work diligently to maintain taxpayer confidence in our federal institutions and seek justice for all victims of fraud."

"McNamara lined his pockets by preying on vulnerable Americans concerned about their health. The genetic tests Medicare patients were lured into receiving did not provide them with any answers on their predisposition to life threatening illnesses and cost taxpayers millions of dollars," said Special Agent in Charge Jonathan Tapp of the FBI New Orleans Field Office. "Today's plea is the culmination of thorough investigative work and partnership between the FBI and the U.S. Department of Health and Human Services Office of Inspector General (HHS-OIG) to protect the public and ensure that justice is served."

"Misleading patients with fraudulent genetic testing schemes to exploit the Medicare program is not just unethical — it's criminal," said Deputy Inspector General for Investigations Christian J. Schrank of HHS-OIG. "Today's plea reflects HHS-OIG's steadfast commitment to holding those who deceive patients and seek to cripple the integrity of our nation's federal health care programs accountable. We will continue to collaborate with our law enforcement partners to investigate such schemes and bring those responsible to justice."

While on pretrial release, McNamara violated his bond conditions by, among other things, fleeing from a DUI arrest and cutting off an ankle monitor. He was subsequently detained.

McNamara pleaded guilty to conspiracy to commit health care fraud. He is scheduled to be sentenced on Sept. 9 and faces up to 10 years in prison. A federal district court judge will determine any sentence after considering the U.S. Sentencing Guidelines and other statutory factors.

HHS-OIG and the FBI are investigating the case.

Assistant Chief Justin M. Woodard and Trial Attorney Kelly Z. Walters of the Criminal Division's Fraud Section and Assistant U.S. Attorney Nicholas Moses for the Eastern District of Louisiana are prosecuting the case.

The Fraud Section leads the Criminal Division's efforts to combat health care fraud through the Health Care Fraud Strike Force Program. Since March 2007, this program, currently comprised of 9 strike forces operating in 27 federal districts, has charged more than 5,800 defendants who collectively have billed federal health care programs and private insurers more than \$30 billion. In addition, the Centers for Medicare & Medicaid Services, working in conjunction with HHS-OIG, are taking steps to hold providers accountable for their involvement in health care fraud schemes. More information can be found at www.justice.gov/criminal-fraud/health-care-fraud-unit.

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